

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

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2. CONTRACT NUMBER	3. SOLICITATION NUMBER W519TC26RA013	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED 20 April 2026	6. REQUISITION/PURCHASE NUMBER
7. ISSUED BY W6QK ACC-RI ACC ROCK ISLAND BLDG 60, 3055 RODMAN AVE ROCK ISLAND, IL 61299-0000 UNITED STATES JENNIFER EDWARDS, EMAIL: JENNIFER.L.EDWARDS158.CIV@ARMY.MIL TELEPHONE: 520-693-0156	CODE W519TC	8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until 12:00 PM local time 21 MAY 2026
(Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL: 	A. NAME JENNIFER EDWARDS	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS JENNIFER.L.EDWARDS158.CIV@ARMY.
	AREA CODE 520	NUMBER 693-0156	EXTENSION	

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OFFER (Must be fully completed by offeror)**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8) 	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified) 	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable**STANDARD FORM 33 (REV. 12/2022)**
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

Instrument Name: Inner Packing for M8 Smoke Pot IDIQ

EXECUTIVE SUMMARY

1. The United States Army Contracting Command - Rock Island requests a proposal for the supply of M8 Smoke Pot Inner Packing to Pine Bluff Arsenal (PBA), Pine Bluff, AR in accordance with (IAW) Federal Acquisition Regulation (FAR) Part 15 - Contracting by Negotiation.
 2. This Non-Commercial Solicitation, W519TC26RA013, is expected to result in a five (5) year, Firm Fixed Price (FFP), Indefinite Delivery/Indefinite Quantity (IDIQ) contract to the offeror whose proposal is responsive and adheres to all the terms and conditions of the solicitation with the lowest priced technically acceptable proposal.
 3. This requirement is issued as a 100% Small Business Set-Aside. The applicable NAICS code is 326140; size standard is 1000 employees.
 4. Drawing 36-3-144 Rev D dated 19 March 2025 for this requirement is restricted. A link to the drawings will be provided on SAM.Gov via Solicitation W519TC26RA013. Contractors must have a SAM.Gov account prior to accessing any TDP(s). You may request the drawings however, due to export restrictions, you must first be certified with US/Canada Joint Certification Program and obtain a certified DD Form 2345. To obtain certification, you may go to the website at <https://www.logisticsinformationservice.dla.mil/PublicHome/jcp/default.aspx>. Once certified, the data custodian listed on your company's certified DD Form 2345 must submit the request for TDP access in FBO using the link provided. The data custodian must also be the one to complete the Non-Disclosure Agreement. Please allow 2-3 working days to process your request. To expedite the review process, please ensure you include your CAGE Code in the reasoning box. You will receive a system generated email from SAM.Gov stating you have been granted permission for viewing or downloading the drawings provided.
- *SEE SECTION J FOR ADDITIONAL TDP INFORMATION
5. Offerors are cautioned to ensure their proposals are fully complete and signed where applicable, including all fill-ins and blanks in the RFP. Any Offeror submitting a proposal agrees by submission that their proposal and the prices contained therein will be valid for 240 days after receipt of final proposals. Please see Section L for additional proposal submission requirements.
 6. The contractor shall prepare and deliver data submissions in accordance with the requirements, quantities, and schedules set forth in the Contract Data Requirements List (DD Form 1423) - Exhibit A. CDRLs shall be submitted with each lot.

7. See Section L - Instructions to Offerors and Section M - Evaluation of Proposals for additional pricing/evaluation information.

8. The Ordering Periods (OP) are provided below (actual dates will be provided at time of award):

OP 1 - Award Date + 365 Days after Award (DAA)

OP 2 - 366 DAA - 731 DAA

OP 3 - 732 DAA - 1,097 DAA

OP 4 - 1098 DAA - 1,463 DAA

OP 5 - 1464 DAA - 1,829 DAA

9. Delivery is FOB Destination. Supplies to be delivered to Pine Bluff Arsenal, Building 53-990 504th Street, Pine Bluff, Arkansas 71602-9500

10. The guaranteed minimum quantity under this IDIQ is 13,500 each. A delivery order for the guaranteed minimum quantity will be awarded concurrently with the basic contract. The Government is under no obligation to place subsequent orders after award of the guaranteed minimum quantity.

11. The maximum quantity for the life of the contract is 67,500 each.

12. Early deliveries are acceptable at no cost to the Government.

13. Contractor questions regarding solicitation and drawings are due no later than 12:00pm CT on 28 April 2026 in order to ensure that all questions can be answered and posted for all offerors' knowledge prior to solicitation closing. All questions should be directed in writing to Ms. Jennifer Edwards by email, jennifer.l.edwards158.civ@army.mil, providing the RFP number, W519TC26RA013, in the subject line.

14. Proposals are to be submitted no later than 12:00pm CT on 21 May 2026. Contractor is to provide a signed copy of Solicitation SF33. See section L for further instructions.

15. Notes:

a) Contract will be awarded in accordance with FAR 15 to the responsive and responsible contractor that is the best value that is determined fair and reasonable, and meets the terms and conditions of this solicitation.

b) Contractor is liable for ACCURACY of submitted quotes and for any incurred costs if quote was submitted erroneously.

- c) Electronic Invoicing instructions shall be provided at time of award. A DD250 will be required.
- d) Proposals submitted in response to this solicitation shall remain valid for 240 days.
- e) Contractors must be registered in the System for Award Management (SAM) in order to be eligible for an award with the U.S. Government. Application to this site can be found under the following link: www.sam.gov. Failure to comply with SAM registration may deem a quote ineligible for award.
- f) Please provide your CAGE Code.
- g) Please provide your DUNS number.
- h) Please provide your SAM Unique Entity Identification (UEI) Code

16. For the contract resulting from this solicitation, the payment will be made by DFAS, via Wide Area Workflow (WAWF).

17. Although the Government intends to award the resultant contract without negotiations, the Government reserves the right to open negotiations.

18. This Executive Summary is provided for administrative assistance only and is not intended to alter the terms and conditions of the contract in any manner. Provisions of this solicitation and technical data shall prevail over this Executive Summary.

19. The Points of Contact for this action are Ms. Jennifer Edwards at jennifer.l.edwards158.civ@army.mil and Ms. Michelle Lund at michelle.m.lund3.civ@army.mil.

20. Attachments are listed in Section J of the Solicitation.

ADDITIONAL INFORMATION:

INSPECTION AND ACCEPTANCE:

Inspection and acceptance will be at destination, unless otherwise provided herein. Until delivery and acceptance, and after any rejections, risk of loss will be on the contractor, unless loss results from negligence of the United States Government.

PACKAGING (PRESERVATION/PACKING/MARKING):

Containers shall be clearly marked, at a minimum, with the information as follows:

- a. Name of contractor

- b. Contract / Purchase Order Number
- c. Description of items contained therein
- d. Lot / Batch Number(s)

ACCEPTANCE OF PRODUCT: MIL-STD-1916

The Department of Defense (DoD) Preferred Methods for this Acceptance of Product, MIL-STD-1916, shall be used for this procurement action. All references to MIL-STD-105, MIL-STD-414, MIL-STD-1235, and ANSI Z1.4 appearing in the Technical Data Package (TDP) are replaced by MIL-STD-1916. Verification Levels (VL) shall replace AQLs and shall be VL IV for major characteristics and VL II for minor characteristics.

SUBMISSION OF PREPRODUCTION SAMPLES:

- a. Preproduction Sample. The Preproduction Sample consisting of the items listed below, shall be (i) representative of items to be manufactured using the process and procedures as contract production and (ii) inspected and tested to all contract drawing & specifications requirements.

REPRODUCTION SAMPLE ITEMS:

QUANTITY: 1 per cavity

ITEM NOMENCLATURE: Inner Packing

DRAWING/SPECIFICATIONS: see drawings

Dimension per drawing 36- 3-144 sheets 1 and 2.

- b. The approved Preproduction Sample will not serve as a manufacturing standard.
- c. The contractor shall notify the Contracting Officer within 7 calendar days prior to production of the Preproduction Sample so that the Government may witness the production if desired.
- d. The contractor shall submit the Preproduction Samples within 30 calendar days from the date of this contract to the address given in the delivery/shipping instructions of this order/contract marked "PREPRODUCTION SAMPLES: Contract No. _____ Lot/Item No. _____". Within 10 calendar days after the Government receives the Preproduction Samples, the Contracting Officer shall notify the contractor, in writing, of the conditional approval or disapproval of the Preproduction Sample. The notice of conditional approval or disapproval shall not relieve the contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval shall state any further action required of the contractor. A notice of disapproval shall cite reasons for the disapproval.
- e. If the Preproduction Sample is disapproved, the contractor, upon Government request, shall make any necessary changes, modifications, or repairs to the Preproduction Sample or submit

another Preproduction Sample for Government inspection. All costs related to these submissions are to be borne by the contractor, including any and all costs for additional samples following a disapproval. The Government shall take action on the resubmitted Preproduction Sample within the time specified in paragraph (c) above. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule, or for any additional costs to the Government related to these resubmissions.

f. If the contractor fails to deliver any Preproduction Sample on time, or the Contracting Officer disapproves any Preproduction Sample, the contractor shall be deemed to have failed to make delivery within the meaning of the Default clause of this contract.

g. Unless otherwise provided in the contract, and if the approved Preproduction Sample is not consumed or destroyed by testing, the contractor may deliver the approved Preproduction Sample as part of the contract quantity if it meets all contract requirements for acceptance.

h. If the Government does not act within the time specified in paragraph (c) or (d) above, the Contracting Officer shall, upon timely written request from the contractor, equitably adjust under the changes clause of this contract the delivery or performance dates and/or the contract price, and any other contractual term affected by the delay.

i. Before the Preproduction Sample approval. The acquisition of materials or components for, or the commencement of production of, the balance of the contract quantity is at the sole risk of the contractor. Before Preproduction Sample approval, the costs thereof shall not be allocable to this contract for (1) progress payments, or (2) termination settlements if the contract is terminated for the convenience of the Government.

j. The Government may waive the requirement for Preproduction Samples where supplies identical or similar to those called for in the schedule have been previously furnished by the offeror /contractor and have been accepted by the Government. The offeror/contractor may request a waiver.

k. The contractor shall produce both the Preproduction Sample and the production quantity at the same facility and shall submit a certification to this effect with each Preproduction Sample.

NOTE: ALL CARRIER SHIPMENTS MUST BE SCHEDULED IN ADVANCE. SEE ADDITIONAL INFORMATION SECTION FOR FURTHER DETAILS. Delivery shall be made to the following address:

Pine Bluff Arsenal

Central Shipping Receiving Point

504th Street, Bldg. 53-990

Pine Bluff, AR 71602

CARRIER INSTRUCTIONS FOR PBA PINE BLUFF ARSENAL WORKING HOURS

Receiving hours for BLDG 53-990 are 0630-1430 (6:30 AM - 2:30 PM CST) Monday through Thursday. No shipments will be accepted on Fridays. All Carriers delivering or picking up must enter through Dexter Gate (commercial truck gate) on or before 2:30p.m. unless prior arrangements have been made. Shipments will not be received on designated Government holidays as follows: New Year's Day, Martin Luther King Day, President's Day, Memorial Day, Juneteenth Holiday, 4th of July, Labor Day, Columbus Day, Veteran's Day, Thanksgiving Day, and Christmas Day, or any additional holidays granted by the President of the United States. If the holiday falls on a Sunday, the holiday will be observed on the following Monday.

The TFG (Transportation Facilities Guide) is updated on a regular basis with any and all closings or special instructions. If you do not have access to the TFG and have questions regarding hours of operation, please contact the Transportation Office at the numbers provided below to schedule an appointment. To obtain access to schedule appointments in the Carrier Appointment System, you may follow the instructions below:

The Carrier Appointment System (CAS) is now housed under "TEAMS" To register for a TEAMS account you will follow the steps below: 1.) Go to [Caution-https://etateams.transport.mil](https://etateams.transport.mil) 2.) Accept the "USG- Authorized Use Only" banner. 3.) You will choose the fourth option in the center of the page "Register as a new user". At this point you will input pertinent information that is Asked /required.

If you are unable to register, you may call Mr. Jon Reed at 870-540-3610, Ms. Darrilyn Brittan at 870-540-3765 or Ms. Linda Wallace at 870-540-3816 and an appointment will be created in CAS for you. You will need to email a copy of the bill of lading to us in accordance with the delivery appointment.

Delivery Address and GPS Info: Ship to Pine Bluff Arsenal (PBA): US Army, Pine Bluff Arsenal, Receiving P, Bldg 53-990, 504th Street Pine Bluff AR 71602 * Instructions for GPS: Intersection Search: search intersection of Wise Road and Dollarway Rd in White Hall AR 71602 LAT/LON Search: 3418'59.8"N 9206'31.7"W (34.316610, -92.108798)

OR FOR NAVIGATION SYSTEMS/GPS: Wise Road and Dollarway Road, White Hall, AR 71602. This will take you to where you turn to enter Dexter Gate.

To reach a Specific POC, for this information, please see below: PBA Transportation Inbound, Mr. Jon Reed, phone (870) 540-3610 alternate 3765 PBA Transportation Officer, Ms. Linda K. Wallace, phone (870) 540-3816 CRSP Supervisor, Mr. Wayne Lainhart, (870) 540-3134, Cell (870) 550-8703; darrell.w.lainhart.civ@mail.mil

AUTHORIZED SIGNATURE The signature on this solicitation, offer or contract should be the signature of:

- (a) A Corporate Officer (President, Vice-President, Treasurer, Secretary); or,
- (b) An individual authorized in writing by a Corporate Officer to bind the company to a legal document.

AMC-LEVEL PROTEST PROGRAM

If you have complaints about this procurement, it is preferable that you first attempt to resolve those concerns with the responsible Contracting Officer. However, you can also protest to Headquarters, AMC. The Headquarters (HQ), AMC-Level Protest Program is intended to encourage interested parties to seek resolution of their concerns within AMC as an Alternative Dispute Resolution forum, rather than filing a protest with the General Accounting Office (GAO) or other external forum. Contract award or performance is suspended during the protest to the same extent, and within the same time periods, as if filed at the GAO. To be timely, protests must be filed within the periods specified in FAR 33.103. Send protests (other than protests to the Contracting Officer) to:

Headquarters U.S. Army Material Command

Office of Command Counsel-Deputy Command Counsel

4400 Martin Road

RM: A6SE040.001

Redstone Arsenal, AL 35898-5000

Fax: (256) 450-8840

E-mail: usarmy.redstone.usamc.mbc.protests@army.mil

The AMC-level protest procedures are found at: <https://www.amc.army.mil/Contact-Us?AMC-Protest-Program/>

If internet access is not available, contact the Contracting Officer or HQ, AMC Office of Command Counsel to obtain the AMC-Level Protest Procedures.

CONTRACT MINIMUM/MAXIMUM QUANTITY AND CONTRACT VALUE

The minimum quantity and contract value for all orders issued against this contract shall not be less than the minimum quantity and contract value stated in the following table. The maximum quantity and contract value for all orders issued against this contract shall not exceed the maximum quantity and contract value stated in the following table

MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
13,500		67,500	

DELIVERY/TASK ORDER MINIMUM/MAXIMUM QUANTITY AND ORDER VALUE

The minimum quantity and order value for each Delivery/Task Order issued shall not be less than the minimum quantity and order value stated in the following table. The maximum quantity and order value for each Delivery/Task Order issued shall not exceed the maximum quantity and order value stated in the following table.

MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
500		13,500	

CLIN MINIMUM/MAXIMUM QUANTITY AND CLIN VALUE The minimum quantity(s) and CLIN value(s) for all orders issued against the CLIN(s) on this contract shall not be less than the minimum quantity(s) and CLIN value(s) stated in the following table. The maximum quantity(s) and CLIN value(s) for all orders issued against the CLIN(s) on this contract shall not exceed the maximum quantity(s) and CLIN value(s) stated in the following table.

CLIN	MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
0001	13,500		67,500	

CLIN DELIVERY/TASK ORDER MINIMUM/MAXIMUM QUANTITY AND CLIN ORDER VALUE

The minimum quantity and order value for the given Delivery/Task Order issued for this CLIN shall not be less than the minimum quantity and order value stated in the following table. The maximum quantity and order value for the given Delivery /Task Order issued for this CLIN shall not exceed the maximum quantity and order value stated in the following table.

CLIN	MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
0001	500		13,500	

*** END OF NARRATIVE ***

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	PACKING, INNER FOR M8 SMOKE POT Part Reference Number: 2000-1538: 3XUS9 Pricing Arrangement: Firm Fixed Price	67,500	Each		

Section C - Description/Specifications/Statement of Work

Requirements

PACKING, INNER FOR M8 SMOKE POT, CONSIST

0001

CLIN only - Requisition Document Number (MILSTRIP, DLMS, FEDSTRIP) : W41G26523200U2

Product Service Code : 8135

North American Industry Classification System (NAICS) : 326140

Bill to Party: W41G26

Section E - Inspection and Acceptance

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.246-2	Inspection of Supplies-Fixed-Price.	1996-08		
52.246-15	Certificate of Conformance.	1984-04		
52.246-16	Responsibility for Supplies.	1984-04		

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See Section E for additional information. DoDAAC: W41G26 CountryCode: USA W0K4 USA OSC PINE BLUFF ARS 504TH ST BLDG 53990, CENTRAL RECEIVING SHIPPING POINT PINE BLUFF, AR 71602-9500 UNITED STATES
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Section F - Deliveries or Performance

0001	Delivery Schedule From date of lead time event to delivery 30 Calendar Days after pre-production sample approval Quantity 67,500 Each Address and POC Ship To DoDAAC: W41G26 CountryCode: USA W0K4 USA OSC PINE BLUFF ARS 504TH ST BLDG 53990, CENTRAL RECEIVING SHIPPING POINT PINE BLUFF, AR 71602-9500 UNITED STATES Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
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FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.242-15	Stop-Work Order.	1989-08		
52.242-17	Government Delay of Work.	1984-04		
52.247-34	F.o.b. Destination.	1991-01		

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12		

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Combo Invoice/Receiving Report

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed

price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2in1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	HQ0303
Issue By DoDAAC	W519TC
Admin DoDAAC	W519TC
Inspect By DoDAAC	W41G26
Ship To Code	W41G26
Ship From Code	----
Mark For Code	W41G26
Service Approver (DoDAAC)	-----

Service Acceptor (DoDAAC)	----
Accept at Other DoDAAC	----
LPO DoDAAC	----
DCAA Auditor DoDAAC	----
Other DoDAAC(s)	----

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Contract Specialist: Jennifer Edwards, jennifer.l.edwards158.civ@army.mil

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.202-1	Definitions.	2020-06		
52.203-3	Gratuities.	1984-04		
52.203-5	Covenant Against Contingent Fees.	2014-05		
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-7	Anti-Kickback Procedures.	2020-06		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	2014-05		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	2014-05		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	2020-06		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	2026-02		

52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02
52.204-19	Incorporation by Reference of Representations and Certifications.	2014-12
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	2026-02
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02
52.211-5	Material Requirements. (Deviation 2026-O0038)	2026-02
52.215-2	Audit and Records-Negotiation. (Deviation 2026-O0038)	2026-02
52.215-8	Order of Precedence-Uniform Contract Format. (Deviation 2026-O0038)	2026-02
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02
52.219-8	Utilization of Small Business	2026-02

	Concerns. (Deviation 2026-O0038)	
52.219-33	Nonmanufacturer Rule. (Deviation 2026-O0038)	2026-02
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (Deviation 2026-O0038)	2026-03
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	2026-02
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02
52.226-7	Drug-Free Workplace.	2024-05
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05

52.229-3	Federal, State, and Local Taxes.	2013-02		
52.229-12	Tax on Certain Foreign Procurements.	2021-02		
52.232-1	Payments.	1984-04		
52.232-8	Discounts for Prompt Payment.	2002-02		
52.232-11	Extras.	1984-04		
52.232-17	Interest.	2014-05		
52.232-23	Assignment of Claims.	2014-05		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10		
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03		
52.233-1	Disputes. (Deviation 2026-O0038)	2026-02		
52.233-1	Disputes. (Deviation 2026-O0038) (Alternate I)	2026-02	Alternate I	2026-02
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and	2026-02		

Exclusions. (Deviation 2026-00038)

52.242-13	Bankruptcy.	1995-07
52.243-1	Changes-Fixed-Price. (Deviation 2026-00038)	2026-02
52.244-5	Competition in Subcontracting.	2024-08
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-00038)	2026-02
52.246-23	Limitation of Liability.	1997-02
52.247-68	Report of Shipment (REPSHIP).	2006-02
52.249-2	Termination for Convenience of the Government (Fixed-Price).	2012-04
52.249-8	Default (Fixed-Price Supply and Service).	1984-04

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	2023-01		

252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12
252.204-7000	Disclosure of Information.	2016-10
252.204-7003	Control of Government Personnel Work Product.	1992-04
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	2019-05
252.211-7008	Use of Government-Assigned Serial Numbers.	2010-09
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01
252.225-7001	Buy American and Balance of Payments Program.	2024-02
252.225-7002	Qualifying Country Sources as Subcontractors.	2022-03
252.225-7012	Preference for Certain Domestic Commodities.	2022-04
252.225-7048	Export-Controlled Items.	2013-06

252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	2023-01
252.232-7010	Levies on Contract Payments.	2006-12
252.243-7001	Pricing of Contract Modifications.	1991-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.216-18	Ordering.	2020-08		

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule.

Such orders may be issued from date of award through 1,829 days after award, exact date to be determined upon contract award.[insert dates].

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations.

1995-10

Order Limitations (Oct 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than 500 each[insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of 13,500 each[insert dollar figure or quantity];

(2) Any order for a combination of items in excess of 13,500 each[insert dollar figure or quantity]; or

(3) A series of orders from the same ordering office within 60 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 7 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22	Indefinite Quantity. (Deviation 2026-O0038)	2026-02
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Indefinite Quantity (Feb 2026) (Deviation 2026-O0038)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in

the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 5 years ADC[insert date].

(End of clause)

52.219-14	Limitations on Subcontracting.	2026-02
	(Deviation 2026-O0038)	

Limitations on Subcontracting (Feb 2026) (Deviation 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the

contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

[X] By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must

be more than administrative functions.

(End of clause)

52.219-28	Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038)	2026-02
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Postaward Small Business Program Rerepresentation (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award

Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under 326140NAICS Code assigned to ____contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) HUBZone joint venture eligible under the HUBZone Program.[Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It ☐ is, ☐

is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.246-17 Warranty of Supplies of a 2003-06
Noncomplex Nature.

Warranty of Supplies of a Noncomplex Nature (June 2003)

(a) Definitions. As used in this clause-

Acceptance means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing supplies, or approves specific services as partial or complete performance of the contract.

Supplies means the end items furnished by the Contractor and related services required under this contract. The word does not include "data."

(b) Contractor's obligations.

(1) Notwithstanding inspection and acceptance by the Government of supplies furnished under this contract, or any condition of this contract concerning the conclusiveness thereof, the Contractor warrants that for 3 years[Contracting Officer shall state specific period of time after delivery, or the specified event whose occurrence will terminate the warranty period; e.g., the number of miles or hours of use, or combinations of any applicable events or periods of time]-

(i) All supplies furnished under this contract will be free from defects in material or workmanship and will conform with all requirements of this contract; and

(ii) The preservation, packaging, packing, and marking, and the preparation for, and method of, shipment of such supplies will conform with the requirements of this contract.

(2) When return, correction, or replacement is required, transportation charges and responsibility for the supplies while in transit shall be borne by the Contractor. However, the Contractor's liability for the transportation charges shall not exceed an amount equal to the cost of transportation by the usual commercial method of shipment between the place of delivery specified in this contract and the Contractor's plant, and return.

(3) Any supplies or parts thereof, corrected or furnished in replacement under this clause, shall also be subject to the terms of this clause to the same extent as supplies initially delivered. The warranty, with respect to supplies or parts thereof, shall be equal in duration to that in paragraph (b)(1) of this clause and shall run from the date of delivery of the corrected or replaced supplies.

(4) All implied warranties of merchantability and "fitness for a particular purpose" are excluded from any obligation contained in this contract.

(c) Remedies available to the Government.

(1) The Contracting Officer shall give written notice to the Contractor of any breach of warranties in paragraph (b)(1) of this clause within 45 days after discovery of defect[Contracting Officer shall insert specific period of time; e.g., "45 days of the last delivery under this contract," or "45 days after discovery of the defect"].

(2) Within a reasonable time after the notice, the Contracting Officer may either-

(i) Require, by written notice, the prompt correction or replacement of any supplies or parts thereof (including preservation, packaging, packing, and marking) that do not conform with the requirements of this contract within the meaning of paragraph (b)(1) of this clause; or

(ii) Retain such supplies and reduce the contract price by an amount equitable under the circumstances.

(3)

(i) If the contract provides for inspection of supplies by sampling procedures, conformance of supplies or components subject to warranty action shall be determined by the applicable sampling procedures in the contract. The Contracting Officer-

(A) May, for sampling purposes, group any supplies delivered under this contract;

(B) Shall require the size of the sample to be that required by sampling procedures specified in the contract for the quantity of supplies on which warranty action is proposed;

(C) May project warranty sampling results over supplies in the same shipment or other supplies contained in other shipments even though all of such supplies are not present at the point of reinspection; provided, that the supplies remaining are reasonably representative of the quantity on which warranty action is proposed; and

(D) Need not use the same lot size as on original inspection or reconstitute the original inspection lots.

(ii) Within a reasonable time after notice of any breach of the warranties specified in paragraph (b)(1) of this clause, the Contracting Officer may exercise one or more of the following options:

(A) Require an equitable adjustment in the contract price for any group of supplies.

(B) Screen the supplies grouped for warranty action under this clause at the Contractor's expense and return all nonconforming supplies to the Contractor for correction or replacement.

(C) Require the Contractor to screen the supplies at locations designated by the Government within the contiguous United States and to correct or replace all nonconforming supplies.

(D) Return the supplies grouped for warranty action under this clause to the Contractor (irrespective of the f.o.b. point or the point of acceptance) for screening and correction or replacement.

(4)

(i) The Contracting Officer may, by contract or otherwise, correct or replace the nonconforming supplies with similar supplies from another source and charge to the Contractor the cost

occasioned to the Government thereby if the Contractor-

(A) Fails to make redelivery of the corrected or replaced supplies within the time established for their return; or

(B) Fails either to accept return of the nonconforming supplies or fails to make progress after their return to correct or replace them so as to endanger performance of the delivery schedule, and in either of these circumstances does not cure such failure within a period of 10 days (or such longer period as the Contracting Officer may authorize in writing) after receipt of notice from the Contracting Officer specifying such failure.

(ii) Instead of correction or replacement by the Government, the Contracting Officer may require an equitable adjustment of the contract price. In addition, if the Contractor fails to furnish timely disposition instructions, the Contracting Officer may dispose of the nonconforming supplies for the Contractor's account in a reasonable manner. The Government is entitled to reimbursement from the Contractor, or from the proceeds of such disposal, for the reasonable expenses of the care and disposition of the nonconforming supplies, as well as for excess costs incurred or to be incurred.

(5) The rights and remedies of the Government provided in this clause are in addition to and do not limit any rights afforded to the Government by any other clause of this contract.

(End of clause)

52.252-2	Clauses Incorporated by Reference.	1998-02
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Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.com ____ [Insert one or more Internet addresses]

(End of clause)

52.252-4 Alterations in Contract. 1984-04

Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows:

(End of clause)

52.252-6 Authorized Deviations in Clauses. 2020-11

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DoD FAR Supplement[insert regulation name] (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.211-7003	Item Unique Identification and Valuation.	2023-01		

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) Definitions. As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

" Enterprise " means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

" Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

" Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is

maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and

12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U. S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition

to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**
- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**
- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

- (i) Use of the embedded items capability in WAWF;
- (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

Section J - List of Attachments

The attachments listed in this Section are incorporated by reference and made part of this contract with the same force and effect as if included in full text.

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	B08 - Attachment 0001 - Price Matrix Inner Packing	Price Matrix		15 Apr 2026		1	Attachment	No
0002	Attachment 0002- Drawing 36-3-144 Rev D dated 19 March 2025	Drawings		19 Mar 2025		2	Attachment	No
0003	Attachment 0003- Drawing 36-3-145_RevA	Drawings	Attachment 0003- Drawing 36-3-145 Rev A dated 3 July 2007	03 Jul 2007		1	Attachment	No
A	Exhibit A- Contract Data Requirements List (CDRL)	Contract Data Requirements List (CDRL)	Exhibit A- Contract Data Requirements List (CDRL)	17 Mar 2026	0001	6	Exhibit	No

Section K - Representations, Certification, & Other Statements

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-	2023-06		

Representation.

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-2	Certificate of Independent Price Determination.	1985-04		

Certificate of Independent Price Determination (Apr 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision ____ [insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

52.204-8	Annual Representations and Certifications. (DEVIATION 2025- O0003 and 2025-O0004)	2025-03	Deviation 2025- O0004	2025-03
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Annual Representations and Certifications (MAR 2025)(DEVIATION 2025-O0003 and 2025-O0004)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 326140 [insert NAICS code].

(2) The small business size standard is 1000 [insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This

provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation.

This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☐ (i) 52.204-17, Ownership or Control of Offeror.

☐ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

[] (B) Alternate I.

[] (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause # Title Date Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.209-7	Information Regarding Responsibility Matters. (Deviation 2026-O0038)	2026-02
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Information Regarding Responsibility Matters (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-13	Violation of Arms Control Treaties or Agreements- Certification. (Deviation 2026- O0038)	2026-02
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Violation of Arms Control Treaties or Agreements-Certification (Feb 2026) (Deviation 2026-O0038)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) Certification. [Offeror shall check either (1) or (2).]

[] (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

[] (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament

agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) Remedies. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.215-6 Place of Performance. (Deviation 2026-02
2026-00038)

Place of Performance (Feb 2026) (Deviation 2026-00038)

(a) The offeror or respondent, in the performance of any contract resulting from this request for proposals, [] intends, [] does not intend [check applicable block] to use one or more plants or facilities located at a different address from the address of the offeror or respondent as indicated in this proposal or response to request for information.

(b) If the offeror or respondent checks "intends" in paragraph (a) of this provision, it shall insert in the following spaces the required information:

Place of Performance (Street Address, City, State, County, ZIP Code)
Name and Address of Owner and Operator of the Plant or Facility if Other than Offeror or Respondent

(End of provision)

52.229-11 Tax on Certain Foreign 2020-06
Procurements-Notice and
Representation.

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption

claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has

represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.204-7998	Alternate A, Annual Representations and Certifications. (DEVIATION 2026-	2026-02	Alternate A Deviation	2026-02 2026-02
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O0043)

2026-
O0043

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--

Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☒ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing

Persons with Disabilities.

[] (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.		Title	Date	Change
_____	_____	_____	_____	
_____	_____	_____	_____	
_____	_____	_____	_____	
_____	_____	_____	_____	
_____	_____	_____	_____	

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

L.1 GENERAL INSTRUCTIONS

L.1.1 This section contains general proposal submission instructions. Specific proposal instructions are addressed at L.2.

a. The U.S Government intends to award without negotiations (see Federal Acquisition Regulation (FAR) 52.215-1), but reserves the right to contact Offerors for clarification, or conducts negotiations if the Contracting Officer determines them to be necessary in accordance with FAR 15.203. In the event the U.S Government determines negotiations are necessary, the Contracting Officer shall establish a competitive range comprised of the acceptable proposals. Only those Offerors within the competitive range will be included in negotiations and considered for award.

b. Each Offeror shall provide the information as required by this solicitation (including all attachments and exhibits) in the proper format as described in paragraph L.3. Proposals that do not contain all the information requested in the solicitation risk being determined unacceptable by the U.S. Government. The U.S government will not assume Offeror possesses any capability, understanding, or commitment not specified in the proposal.

c. Proposals shall be specific, complete and address each of the designated requirements listed below. The proposal must not merely repeat the solicitation requirements but rather must provide documentary evidence explaining how contract requirements will be met by the Offeror.

d. Proposals shall be evaluated only on their content. Assumptions, preconceived ideas and personal knowledge or opinions for these factors not supported by material provided in the proposal will not be considered for used as a basis for evaluation.

e. Offerors are responsible for confirming with the Contracting Officer and/or Contract Specialist to ensure that the proposal submitted has, in fact, been received by the Contracting Officer and/or Contract Specialist. This must be done by the date/time set forth in the solicitation for receipt of offerors.

L.1.2 All questions concerning this procurement, either technical or contractual, must be submitted in writing to the Contracting Officer and/or Contract Specialist. No direct discussion between the technical representative and a prospective Offeror will be conducted. Questions shall be sent to the following points of contact:

Contracting Officer: Michelle Lund, michelle.m.lund3.civ@army.mil

Contract Specialist: Jennifer Edwards, Jennifer.l.edwards158.civ@army.mil

L.1.3 the complete proposal shall be electronically submitted to the Contracting Officer, or their representative no later than the due date and time specified in the solicitation, to include any

subsequent amendments. Proposals submitted by mail or hand-carried will not be evaluated. Proposals shall be submitted electronically to michelle.m.lund3.civ@army.mil and jennifer.l.edwards158.civ@army.mil.

Electronic mail proposal submissions shall not exceed a size limit of 10MB (multiple emails may be utilized to complete the proposal submission). It is highly recommended that the Offeror request a "Return Receipt" or other form of acknowledgement to verify that the proposal submission was received. Due to file size restrictions, proposals may also be submitted through DoD SAFE, <http://safe.apps.mil>. A link will need to be requested from the Point of Contacts listed above to upload to the DoD SAFE site. Cloud services and third party drop boxes are not acceptable for proposal submission.

L.2 PROPOSAL SUBMISSION REQUIREMENTS:

L.2.1 The proposal shall be submitted in the English language and include all of the following:

- a. One completed signed electronic copy of the complete Solicitation, Standard Form 33 (DF33) and continuation sheets (Section A through M) and acknowledgement of all amendments. The solicitation and amendment(s) must be signed by an individual authorized to bind the Offeror.
- b. Offeror must submit a completed Price Matrix (Attachment 0001) as stated in Section L.4.2.
- c. Offerors are directed to thoroughly read the solicitation and fill in information on all appropriate clauses as stated in the solicitation. Specifically, the following clauses/attachments, which require fill-in information, but are not limited to:
 - o Attachment 0001- Price Matrix
 - o Section I, Clause 52.219-28
 - o Section K, Clause 52.209-7
 - o Section K, Clause 52.209-13
 - o Section K, Clause 52.204-7017
 - o Section K, Clause 52.215-6
 - o Section K, Clause 52.203-2
 - o Section K, Clause 52.229-11
 - o Section K, Clause 52.204-8 (Deviation 2025-O0004)
 - o Section L, Clause 52.207-4
- d. For any fill-ins that are not applicable, the Offeror must acknowledge by indicating N/A.

e. The proposal volumes, as reflected in L.3.1, shall be compiled using the Portable Document Format (.pdf).

f. As a requirement under this solicitation, all Offerors must submit Representations/Certifications data into the System for Award Management (SAM) Database at <https://www.sam.gov/>. The purpose of electronic Representations and Certifications is to provide all Offerors with a portal in which to submit Representations and Certifications in a publicly accessible format, nullifying the requirement to submit identical information in response to ever Federal contract solicitation. Any Offeror that has previously submitted Representations/Certified data in SAM are reminded to update the data prior to submitting its proposal and shall ensure its records are not expired.

g. The Offeror's proposal shall be made valid for 240 days after the close of the RFP.

L.3 FACTORS AND SUBFACTORS TO BE EVALUATED

L.3.1 Each proposal shall be submitted in separate volumes as set forth below. Each volume shall be numbered sequentially beginning at page one.

a. Volume I- Technical Factor: Page Limit-50pages

The Technical factor has three subfactors:

Subfactor 1- Manufacturing Plan

Subfactor 2- Experience

Subfactor 3- Delivery Schedule

The U.S Government will count pages in Volume 1 and remove any pages that exceed the maximum page limit. Any pages over the maximum page limit for Volume 1 will not be considered in the evaluation. The title page, tables of contents, acronym lists, or index will not be counted against the maximum page limit.

b. Volume II-Price Factor

The Price factor shall be contained in a separate file from the non-price factors. The Price Matrix (Attachment 0001) shall be submitted electronically in Microsoft Excel Format. Unit Prices shall be limited to two decimal places. No additional information shall be submitted in the Price Factor other than the Price Matrix (Attachment 0001).

c. Volume III-Acknowledgements and signatures

This volume shall contain one completed signed electronic copy of the complete solicitation, SF33, and continuation sheets (Section A through M) and acknowledgement of all amendments (see Section L.5)

L.3.2 Each Volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date and solicitation number in the header and/or footer. Each volume shall be as brief as possible. Pages should not exceed 8-1/2 inches in width by 11 inches in length; flow diagrams and tables may exceed 8-1/2 inches in width by 11 inches in length. The font used shall not be less than 12 point. Font smaller than 12 point is ONLY acceptable in graphics, sketches, tables, charts, price matrix etc. but must be at least 8 point.

L.4 SPECIFIC PROPOSAL INSTRUCTIONS

Offerors are responsible for including sufficient details (i.e., drawings, test data) to permit a complete and accurate evaluation. Volume I, Technical factor proposal, shall have a separate index, which contains narrative titles, which are cross-referenced to the applicable RFP Requirement. This index shall not count against the page limitation for the technical factor proposal. All information shall be specific to the Inner Packing for the M8 Smoke Pot.

In response to the RFP, the Offeror must address the following factors and subfactors:

L.4.1 VOLUME 1-TECHNICAL FACTOR

The Technical factor has the following three subfactors:

Subfactor 1- Manufacturing Plan

Subfactor 2- Experience

Subfactor 3- Delivery Schedule

L.4.1.1 Subfactor 1: Manufacturing Plan

The Offerors Manufacturing Capability subfactor proposal shall include, but its not limited to, the details below:

a. The Offer shall provide a detailed manufacturing plan describing the Offeror's understanding of the M8 Inner Packing requirements per drawing 36-3-144 and drawing 36-3-145.

L.4.1.2 Subfactor 2: Experience

a. The Offeror shall provide a proposal that clearly and convincingly communicates the experience and capability of the Offeror to perform the work required as described in this solicitation.

L.4.1.3 Subfactor 3: Delivery Schedule

The Offeror's delivery Schedule Plan subfactor proposal shall include, but its not limited to, the details below:

a. The Offeror shall provide a delivery schedule plan that shows clearly and convincingly the Offeror is able to meet the proposed delivery schedule.

L.4.2 Volume II- Price Factor

L.4.2.1. Basis of Evaluation: The Government will calculate a Total Evaluated Price (TEP) by applying the evaluation "weight%" shown in the pricing matrix to the Offeror's proposed prices, as described in Section M. The automated formulas in the spreadsheet perform this calculation.

a. Pricing Matrix- Offerors shall provide a completed Price Matrix, Attachment 0001, in Microsoft Excel. The Provided Excel file contains locked cells with prepopulated formulas. Offerors shall input their administrative information (e.g, Offeror Name, CAGE code) in the designated unlocked cells and shall only input pricing data into the unlocked PROPOSED UNIT PRICE CELLS.

b. Pricing Requirements- Offerors must propose a firm fixed unit price for every line item for each of the five (5) Ordering Periods. This includes:

a. Production Units: For CLIN 0001AA for each quantity range shown.

c. Cost Proposal: In accordance with Lowest Price Technically Acceptable (LPTA) evaluation methodology, detailed cost proposals, cost element breakdowns, and certified cost or pricing data are not required with the initial proposal submission. The Government reserves the right to request this information if it becomes necessary (see FAR 15.403)

L.5 NOTICES TO OFFERORS

All exchanges (clarifications, communications, and negotiations) with Offerors are accomplished through the release of Evaluation Notices (ENs). The U.S Government will issue written ENs as part of all exchanges. ENs may be issued via letter sent through email.

L.5.1.1 The intent of this section is to advise Offeror(s) that they may be receiving EN question on-line if they remain in the competitive range and the U.S. Government decides to conduct negotiations.

Proposal Revisions: All proposal revisions shall be submitted as instructed at the time revisions may be required. Offeror(s) are reminded that proposal revision submissions are subject to FAR 52.215-1, Instruction to Offerors- Competitive Acquisition. Electronic submissions shall conform to the guidance provided therein. EN Response: Responses to ENs and any resulting proposal revisions must be provided in accordance with the following instructions:

a. A complete response must be provided within the EN response, including an explanation of any revisions to Offeror's proposal. Please do not simply provide a reference to revisions in the Offeror's proposal.

b. If a response to an EN requires a revision to Offeror's proposal, identify a reference in your response(s) to the location (e.g., Volume #, Section #, paragraph #, etc.) of the revision of the Offeror's proposal.

NOTE: To be considered as part of Offeror's proposal evaluation, the changes shall be made in the Offeror's proposal submission and Offeror shall conform to the page format/limitation requirements.

c. Attach the complete resubmission file containing the proposal revisions for each volume as Attached Files with Offerors reply in the last EN for the respective volume (i.e., one attached file per volume, same file structure as initially submitted). Do not submit change pages or multiple copies of Offerors revised proposal. Offerors are requested to limit changes to items identified in the EN. For clarify purposes, Offerors are required to clarify identify the corresponding changes in Offeror's proposal (e.g., use track changes to show date, vertical line in margin, bold and/or underline). Also, add a footer to indicate revision, as of DD/MM/YY (i.e., date of submission of the revision) for each file affected.

d. Each revision on each page shall be identified by date and by revision number. Offerors shall also place their company name within the header or footer of each page along with the section number. New/changed information shall be identified by a vertical line in the margin next to the change or addition and by using redline and strikeout features.

e. After all ENs have been issued and responses submitted, and what is instructed by the Contracting Officer, Offerors shall submit Finale Proposal Revision Letter.

L.6 Use of Artificial Intelligence (AI) tools in Proposal Evaluation.

L.6.1 Use of AI tools in Support of Evaluations: The Government will employ AI as a tool to assist in the analysis and review of offeror proposals. AI tools may be used to support tasks such as summarizing proposal content, identifying compliance with request for task order proposal /solicitation requirements, and highlighting areas of potential strengths, weakness, or risk.

L.6.2 Maintaining Inherently Governmental Functions: Notwithstanding the use of AI tools to support the evaluation process, all final evaluation judgements, including the assignment or assessment of adjectival ratings, best value determinations, and source selection decisions, will be made exclusively by duly appointed Government personnel. The Government retains sole responsibility for all inherently governmental functions and will not delegate decisions making authority to any AI tool.

L.6.3 Offeror Confidentiality and Data Protection: The AI tools utilized by the Government will be employed in a manner consistent with applicable regulations that govern the protection of proprietary and source selection sensitive information. The AI tool will be on output-only system. Any Generated report data is not saved. No proposal data will be transmitted to or processed by external, non-Government systems without appropriate safeguards and authorizations in place.

*** END OF NARRATIVE ***

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Deviation 2026-O0038)	2026-02		
52.215-20	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Deviation 2026-O0038)	2026-02		
52.233-2	Service of Protest. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		

252.215-7013 Supplies and Services Provided 2023-01
by Nontraditional Defense
Contractors.

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.207-4	Economic Purchase Quantity-Supplies.	1987-08		

Economic Purchase Quantity-Supplies (Aug 1987)

(a) Offerors are invited to state an opinion on whether the quantity(ies) of supplies on which bids, proposals or quotes are requested in this solicitation is (are) economically advantageous to the Government.

(b) Each offeror who believes that acquisitions in different quantities would be more advantageous is invited to recommend an economic purchase quantity. If different quantities are recommended, a total and a unit price must be quoted for applicable items. An economic purchase quantity is that quantity at which a significant price break occurs. If there are significant price breaks at different quantity points, this information is desired as well.

Offeror Recommendations				
Item	Quantity	Price Quotation		Total
_____	_____	_____	_____	
_____	_____	_____	_____	
_____	_____	_____	_____	

(c) The information requested in this provision is being solicited to avoid acquisitions in disadvantageous quantities and to assist the Government in developing a data base for future acquisitions of these items. However, the Government reserves the right to amend or cancel the solicitation and resolicit with respect to any individual item in the event quotations received and the Government's requirements indicate that different quantities should be acquired.

(End of provision)

52.215-20	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Alternate III)	2026-02	Alternate III	1997-10
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Alternate III (Oct 1997). As prescribed in 15.110(t)(3), add the following paragraph (c) to the basic provision (if Alternate II is also used, redesignate the following paragraph as paragraph (d)).

(c) Submit the cost portion of the proposal via the following electronic media: electronic spreadsheet format[Insert media format, e.g.,electronic spreadsheet format, electronic mail, etc.]

52.216-1	Type of Contract. (Deviation 2026-O0038)	2026-02
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Type of Contract (Feb 2026) (Deviation 2026-O0038)

The Government contemplates award of a Firm Fixed Price[Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.252-1 Solicitation Provisions 1998-02
Incorporated by Reference.

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.com_____ [Insert one or more Internet addresses]

(End of provision)

52.252-3 Alterations in Solicitation. 1984-04

Alterations in Solicitation (Apr 1984)

Portions of this solicitation are altered as follows:

(End of clause)

52.252-5 Authorized Deviations in 2020-11
Provisions.

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulations Supplement, Department of Defense[insert regulation name](48 CFR Chapter2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.215-7012	Requirements for Submission of Proposals via Electronic Media.	2018-01		

REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media: electronic spreadsheet format[Insert media format, e.g., electronic spreadsheet format, electronic mail, etc.]

(End of provision)

252.215-7992	Only One Offer. (DEVIATION 2026-O0048)	2026-03	Deviation 2026- O0048	2026-03
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ONLY ONE OFFER (DEVIATION 2026-O0048) (MAR 2026)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to--

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-2(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7994, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at 15.404).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U. S. Contracting Officer that the proposed price is fair and reasonable [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-1 with the notification].

(4) As specified in FAR 15.403-1(d), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section M - Evaluation Factors for Award

SECTION M-EVALUATION FACTORS FOR AWARD

It is the responsibility of the Offeror to provide complete and thorough explanations for each factor /subfactor submitted as required by Section L. Each volume, to include all factors/subfactors, shall be submitted with its initial proposal, and the U.S. Government is not obligated to make another request for the required information. Performance or capabilities proposed above mandatory minimums may be incorporated into the contract in accordance with FAR 15.204-2(b)(4).

M.1. BASIS FOR AWARD

- a. The Government intends to award one contract to the Offeror responsible whose proposal conforms to the solicitation and represents the lowest evaluated price among all technically acceptable offers. This is a Lowest Price Technically Acceptable (LPTA) source selection. The technical evaluation team will prepare a detailed written evaluation of each Offeror's Technical Proposal, Volume 1, addressing whether the offeror includes the information and supporting data required for each of the subfactors. The Technical Evaluation Team shall then assign a consensus rating (acceptable or unacceptable) to each Volume 1 subfactor based on the information and supporting data provided. Any areas of the offer requiring clarification will be referred to the Contracting Officer for resolution.
- b. The Government intends to award without negotiations, however in the event it is determined negotiations are required, the SSA shall make the final determination of technical acceptability /unacceptability of each proposal and establish a competitive range among offerors' proposals that were deemed acceptable. The SSA shall then select the lowest priced technically acceptable proposal from the competitive range.
- c. Each Initial offer should contain the Offerors best terms for award of a contract under the solicitation. The Procuring Contracting Officer reserves the right to contact offerors for clarification, without opening negotiations. The Government intends to award a contract without opening negotiations (except for clarification as described in FAR 15.203 and FAR 52.215-1). However, the Government reserves their right to conduct negotiations and permit offerors to revise their proposal
- d. The Government reserves the right to make no award as a result of this solicitation if, upon evaluation, none of the proposals are deemed technically acceptable, and there is no reasonable expectation that opening negotiations would result in technically acceptable proposals, or if the prices cannot be determined price fair and reasonable.

M.1.1 NEGOTIATIONS

Each proposal shall contain the Offeror's best terms for award of a contract under the solicitation. The U.S. Government intends to award without negotiations. The Contracting Officer may contact Offerors for clarification, as described in FAR 15.203 and FAR 52.215-1, without opening

negotiations. However, the U.S. Government reserves the right to conduct negotiations and to permit Offerors to revise its proposal if determined necessary by the Contracting Officer. If the Contracting Officer determines negotiations are necessary, they will be held IAW FAR 15.204.

M.1.2 OTHER EVALUATION CONSIDERATIONS

- a. Proposals that are unrealistic in terms of technical or schedule commitments or contain significant unbalanced prices may be considered an indication of a lack of understanding of the complexity and risk in the contract requirements and may be determined unacceptable.
- b. Pursuant to FAR 9.103, contracts will only be awarded to Offerors that the Contracting Officer determines to be responsible. Separate from the best value source selection criteria, Offerors must be able to demonstrate that they meet the standards of responsibility set forth in FAR 9.104. the U. S. Government may conduct a pre-award survey on any Offerors considered for award, to assist in Contracting Officer's determination of Contractor responsibility.

M.1.3 ORDER OF IMPORTANCE

The Technical Factor will be rated as either "Acceptable" or "Unacceptable". However, if an Offeror fails to achieve an "Acceptable" rating for the Technical Factor as outlined above, the Offeror shall not be further considered for award.

M.1.4. EVALUATION FACTORS

Volume I: Technical Factor

Subfactor 1- Manufacturing Plan

Subfactor 2- Experience

Subfactor 3- Delivery Schedule

Volume II: Price

M.1.5. EVALUATION PROCEDURES, CRITERIA, AND RATINGS

Each Offeror will be evaluated against the evaluation to determine whether the Offeror has the technical expertise, equipment, and personnel required to manufacture and deliver/manage the product in accordance with the delivery schedule as delineated in Section B of the solicitation. The U.S. Government will assign a rating of "Acceptable" or "Unacceptable" for all of the non-cost factors. The definition of the Technical Factor rating is below:

Acceptable: Proposal adequately meets the requirements of the solicitation

Unacceptable: Proposal does not adequately meet the requirements of the solicitation.

M.2. VOLUME I-TECHNICAL FACTOR EVALUATION CRITERIA

An Offeror's proposal must fully address each of the subfactors delineated below and must provide specified documentation with respect to each subfactor. For an offeror's technical proposal to be rated as acceptable, each subfactor identified below must receive an acceptable rating. An acceptable and unacceptable rating are defined as follows:

ACCEPTABLE- The proposal demonstrates a clear understanding of the minimum requirements. Evidence provided indicates the stated approach will be successful and that the requirements set forth in the drawings have been met. The Offeror has successfully addressed the following items: understanding the requirement, manufacturing plan, experience of a similar nature and delivery schedule.

UNACCEPTABLE- The offeror fails to demonstrate a clear understanding of the minimum requirements. The approach fails to thoroughly address the requirements in the drawings. The approach fails to address a clear understanding of the following items, understanding the requirement, manufacturing plan, experience of a similar nature and delivery schedule.

M.2.1 TECHNICAL FACTORS

M.2.1.1 Subfactor 1: Manufacturing Plan:

a. The Government will evaluate the Offeror's Manufacturing plan to determine the adequacy and level of understanding of the M8 Inner Packing per drawing 36-3-144 and drawing 36-3-145.

M.2.1.2 Subfactor 2: Experience:

a. The Government will evaluate the Offeror's Experience to determine the capability of the Offeror to perform the work required, specifically with Inner Packing.

M.2.1.3 Subfactor 3: Delivery Schedule:

a. The Government will evaluate the Offeror's Delivery Schedule plan to determine if the Offeror can successfully meet the proposed delivery schedule.

M.2.2 VOLUME II- PRICE FACTOR

Evaluation Approach: The Government will evaluate price to determine the lowest priced, technically acceptable offer. The price evaluation will be performed by calculating a Total Evaluated Price (TEP) for each offeror using the pre-populated formulas in the Pricing Matrix. The award will be made to the responsible offeror found to be technically acceptable whose proposal offers the lowest TEP to the Government.

a. **Total evaluated Price (TEP) Calculation:** The TEP will be the sum of the of the evaluated prices for all CLINs and quantity ranges across all five ordering periods. The evaluated price for each line item will be calculated by the embedded formulas as follows:

a. For Production CLINs: The evaluated price for each range is calculated using the following formula:

$(\text{Maximum Quantity of the Range}) \times (\text{Offeror's Proposed Unit Price}) \times (\text{Weight \%})$

b. Price Reasonableness: The Government may use various price analysis techniques described in FAR 15.404-1(b) to ensure the lowest evaluated price is fair and reasonable.

c. Unbalanced Pricing: Proposals will be analyzed for unbalanced pricing in accordance with FAR 15.404-6. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items or ranges is significantly overstated or understated. Proposals found to be materially unbalanced may be rejected as unacceptable.

*** END OF NARRATIVE ***